

Vernon's Texas Statutes and Codes Annotated

Occupations Code (Refs & Annos)

Title 12. Practices and Trades Related to Water, Health, and Safety (Refs & Annos)

Subtitle B. Practices Related to Health and Safety

Chapter 1958. Mold Assessors and Remediators (Refs & Annos)

Subchapter A. General Provisions

V.T.C.A., Occupations Code § 1958.002

§ 1958.002. Scope of Authority

Currentness

(a) This chapter applies only to the regulation of mold-related activities that affect indoor air quality, including a mold-related activity performed by a third party for compensation at a property owned or operated by a governmental entity.

(b) This chapter does not apply to:

(1) the following activities when not conducted for the purpose of mold assessment or mold remediation:

(A) routine cleaning;

(B) the diagnosis, repair, cleaning, or replacement of plumbing, heating, ventilation, air conditioning, electrical, or air duct systems or appliances;

(C) commercial or residential real estate inspections; and

(D) the incidental discovery or emergency containment of potential mold contamination during the conduct or performance of services listed in this subsection;

- (2) the repair, replacement, or cleaning of construction materials during the building phase of the construction of a structure;
- (3) the standard performance of custodial activities for, preventive maintenance of, and the routine assessment of property owned or operated by a governmental entity;
- (4) a pest control inspection conducted by a person regulated under Chapter 1951; or
- (5) demolition of a structure after a fire or other disaster.

Credits

Added by [Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003](#). Amended by [Acts 2025, 89th Leg., ch. 493 \(S.B. 1255\), § 2, eff. Sept. 1, 2025](#).

V. T. C. A., Occupations Code § 1958.002, TX OCC § 1958.002

Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.